

		is strictly prohibited The Court finds that Plaintiff has not shown that the agreement is procedurally unconscionable. With regard to substantive unconscionability, Plaintiff contends the agreement provides that the parties will share equally in all fees and costs. This also is not 100% accurate as the agreement expressly conditions this on applicable law, noting that if required, CPK will pay all costs unique to arbitration. Additionally, Plaintiff argues that the provision is confusing because it attempts to impose the Federal Rules of Civil Procedure (“FRCP”) and Federal Rules of Evidence (“FRE”) within a private JAMS employment arbitration proceeding, is one-sided, and overbroad. These arguments are unavailing and not supported by any applicable legal authority. Notwithstanding this, Plaintiff must show both procedural and substantive unconscionability in arguing that the agreement is unenforceable. (See <i>Armendariz, supra</i>, (2000) 24 Cal. 4th at 114.) Given that Plaintiff could have opted out of the agreement without affecting her employment, procedural unconscionability has not been shown. The motion is granted. This matter is hereby stayed pursuant to Code Civ. Proc., § 1281.4. The case management conference is vacated. The Court sets a status conference on July 19, 2027 at 10:00 a.m. in Dept. C27 re: the status of arbitration. Defendant is ordered to give notice.
108	2024-01399043 Madrid vs. Ford Motor Company	1. Motion for Attorney Fees 2. Order to Show Cause re: Dismissal on Settled Case The Court grants Plaintiff Abraham Madrid’s Motion for attorney’s fees against Defendant Ford Motor Company in the amount of \$32,812.50. The Court denies the request for any “Lodestar” enhancement. The Court will also enter a judgment for costs for \$2,359.90, the amount requested. Plaintiff is ordered to prepare a proposed judgment, including the costs in the amount requested, as no timely motion to strike or tax costs was filed. The Court intends on dismissing this matter with prejudice in light of the fact that this matter has settled. If Plaintiff opposes the Court’s tentative ruling in this regard, Plaintiff’s counsel should attend the hearing and be prepared to address the OSC. Plaintiff is ordered to serve notice of this ruling.
109	2025-01526045 Freeman vs. Massage Envy Franchising, LLC	1. Demurrer to Complaint 2. Motion to Strike Complaint 3. Case Management Conference A. Demurrer